

AISH / ADAP: Decisions Applying Provisions Before Their In-Force Date

A documented pattern, submitted for legal assessment · June 2026

The question

Until July 2, 2026, current AISH recipients remain governed by the *Assured Income for the Severely Handicapped Act* and the regulations presently in force. Two sets of changes are **not yet in force**:

- The *Financial Statutes Amendment Act, 2025 (No. 2)* (SA 2025 c20), Section 6, which amends the AISH Act to deem recipients onto the Alberta Disability Assistance Program (ADAP) and to bar any appeal of that transition (ss. 12.6 and 12.8). The Alberta Proclamations page confirms Section 6 is proclaimed in force **July 2, 2026**.
- The unified AISH General Regulation (**AR 96/2026**), which restructures personal benefits, including a new establishing-a-new-residence provision (Schedule 3, Section 8) limited to clients leaving an institution or escaping abuse. It comes into force **July 2, 2026**.

Each decision documented below is dated **before** July 2, 2026, and on the date of the decision the affected person remained a current AISH recipient. The decisions appear to apply these not-yet-in-force provisions ahead of that date.

Three documented decisions

(De-identified. Underlying records held and available to counsel on request, with the affected persons' consent.)

- 1. Appeals Secretariat — June 2026.** A current AISH recipient who filed an appeal was advised in writing that they cannot appeal their placement on ADAP, and was directed to apply for AISH in July 2026.
- 2. Appeals Secretariat — June 20, 2026.** A second current AISH recipient received a written response stating that they cannot appeal their placement on the ADAP program. The response cited no statutory or regulatory provision. As of its date the recipient had not been placed on ADAP, and the provision that would bar such an appeal (s. 12.8) was not in force.
- 3. AISH personal-benefit denial — June 19, 2026.** A current AISH recipient's request for a moving benefit was denied. The decision states it was considered under "Section 2.01(1)(d)(ii), Section 8 and Schedule 3 of the AISH General Regulation." The establishing-a-new-residence provision at Schedule 3, Section 8 — limited to leaving an institution or escaping abuse — corresponds to AR 96/2026, which is not in force until July 2, 2026. In the regulation in force on the date of the decision, the moving benefit appears at Section 9 and includes a ground for a move made necessary because the current accommodation endangers the client's health or safety, with no institution requirement.

The government's own current guidance

The Government of Alberta's live AISH appeals page states that, under the AISH Act and the *Application and Appeals (Ministerial) Regulation*, recipients have the right to appeal most decisions the AISH program makes. The decisions above tell current recipients the opposite, before the law that would support that position is in force.

What we are asking

We are not lawyers. We are documenting a pattern and requesting your assessment:

1. Do these decisions apply provisions not yet in force to people who remain current AISH recipients on the date of decision?
2. If so, what recourse is available to affected recipients — for example, reconsideration, a complaint to the Alberta Ombudsman, or judicial review at the Court of King's Bench?
3. The window in which current recipients retain their existing appeal rights closes on July 2, 2026. Is there value in a credentialed public clarification that those rights remain in effect until that date?

The underlying de-identified documents and primary-source links are available on request.

The Alberta Disability System Breakdown — Advocate

St. Albert, Alberta | June 2026

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Postscript — Status update

Added July 6, 2026, to a memo dated June 2026

As of July 2, 2026, the provisions referenced in this memo are now in force. The Financial Statutes Amendment Act, 2025 (No. 2) (SA 2025 c20), Section 6, and the unified AISH General Regulation (AR 96/2026) were proclaimed in force on July 2, 2026.

This does not change the record set out on the preceding page. Each decision documented in this memo was dated before July 2, 2026, on a date when the affected person remained a current AISH recipient and the provisions being applied had not yet come into force. This memo stands as a record of that pattern.

Two of the three questions raised remain live. Whether these decisions applied not-yet-in-force provisions to people who were current AISH recipients on the date of decision, and what recourse is available to those affected, are matters that survive the coming-into-force date. They remain relevant to reconsideration, a complaint to the Alberta Ombudsman, judicial review at the Court of King's Bench, and the broader documented record now being assembled.

The third question, whether a credentialed public clarification of appeal rights before July 2 would have value, is now moot, as that date has passed.

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